

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI
OXFORD DIVISION**

MATTHEW OLIVER REARDON

PLAINTIFF

V.

CIVIL ACTION NO. 3:22-CV-050-SA-JMV

STATE OF MISSISSIPPI, ET AL.

DEFENDANTS

**RESPONSE IN OPPOSITION TO *PLAINTIFF’S SWORN DECLARATION AND
REQUEST FOR EMERGENCY INJUNCTIVE RELIEF WITH STIPULATED ORDER
FOR PROTECTION* [Doc. 60]**

COME NOW Lafayette County Chancery Court, David O’Donnell, Sherry Wall and Jeff Busby, identified in the Complaint filed herein as defendants, by and through counsel, and affirmatively deny the allegations and claims for relief set forth in *Plaintiff’s Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection* [Doc.60], hereinafter referred to for convenience as “Plaintiff’s motion”, aver that Plaintiff’s motion is but a restated version of his Complaint filed herein, adopt herein by reference for all purposes these Defendants’ Answer and Defenses, and aver that there is no merit whatsoever in the allegations contained in Plaintiff’s motion, denying all and singular allegations of their individual and collective liability to Plaintiff, and further show unto the Court as follows:

1. These Defendants deny the allegations contained in paragraph 1 of Plaintiff’s motion to the extent those allegations depart from or are inconsistent with the docket maintained by the Clerk of this Court.

2. These Defendants deny the allegations contained in paragraph 2 of Plaintiff’s motion.

3. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 3 of Plaintiff's motion, and therefore deny same.

4. These Defendants deny the allegations contained in paragraph 4 of Plaintiff's motion.

5. These Defendants deny the allegations contained in paragraph 5 of Plaintiff's motion.

6. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 6 of Plaintiff's motion, and therefore deny same.

7. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 7 of Plaintiff's motion, and therefore deny same.

8. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 8 of Plaintiff's motion, and therefore deny same.

9. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 9 of Plaintiff's motion, and therefore deny same.

10. These Defendants deny the allegations contained in paragraph 10 of Plaintiff's motion as phrased.

11. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 11 of Plaintiff's motion, and therefore deny same.

12. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 12 of Plaintiff's motion, and therefore deny same.

13. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 13 of Plaintiff's motion, and therefore deny same.

14. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 14 of Plaintiff's motion, including subparagraphs a, b, c, and d, and therefore deny same.

15. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 15 of Plaintiff's motion, and therefore deny same.

16. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 16 of Plaintiff's motion, and therefore deny same.

17. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 17 of Plaintiff's motion, and therefore deny same.

18. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 18 of Plaintiff's motion, and therefore deny same.

19. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 19 of Plaintiff's motion, and therefore deny same.

20. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 20 of Plaintiff's motion, and therefore deny same.

21. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 21 of Plaintiff's motion, and therefore deny same.

22. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 22 of Plaintiff's motion, and therefore deny same.

23. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 23 of Plaintiff's motion, and therefore deny same.

24. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 24 of Plaintiff's motion, and therefore deny same.

25. These Defendants admit that Sheriff East is a defendant in this action; they are without knowledge or information sufficient to form a belief as to the truth or falsity of the remaining allegations contained in paragraph 25 of Plaintiff's motion, and therefore deny same.

26. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 26 of Plaintiff's motion, and therefore deny same.

27. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 27 of Plaintiff's motion, and therefore deny same.

28. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 28 of Plaintiff's motion, and therefore deny same.

29. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 29 of Plaintiff's motion; the Court record speaks for itself; these Defendants deny paragraph 29 of Plaintiff's motion to the extent that it departs from, changes, or incorrectly describes proceedings before Judge Kent Smith, and deny the rest and remainder of paragraph 29 of Plaintiff's motion.

30. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 30 of Plaintiff's motion, and therefore deny same.

31. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 31 of Plaintiff's motion, and therefore deny same.

32. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 32 of Plaintiff's motion, but would affirmatively deny that any of these defendants had anything whatsoever to do with any charges

brought against Plaintiff and described in his motion; these defendants, therefore deny paragraph 32 in its entirety.

33. Plaintiff's conversations with his lawyer described in paragraph 33 of his motion do not appear to involve any of these Defendants; if they be intended to assert liability or wrongful conduct against any of these Defendants, then they are denied.

34. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 34 of Plaintiff's motion, and therefore deny same.

35. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 35 of Plaintiff's motion, and therefore deny same.

36. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 36 of Plaintiff's motion, and therefore deny same.

37. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 37 of Plaintiff's motion, and therefore deny same.

38. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 38 of Plaintiff's motion, and therefore deny same.

39. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 39 of Plaintiff's motion, and therefore deny same.

40. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 40 of Plaintiff's motion, and therefore deny same.

41. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 41 of Plaintiff's motion, and therefore deny same.

42. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 42 of Plaintiff's motion, and therefore deny same.

43. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 43 of Plaintiff's motion, and therefore deny same.

44. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 44 of Plaintiff's motion, and therefore deny same.

45. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 45 of Plaintiff's motion, and therefore deny same.

46. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 46 of Plaintiff's motion, and therefore deny same.

47. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 47. of Plaintiff's motion, and therefore deny same.

48. These Defendants deny the allegations contained in paragraph 48 of Plaintiff's motion.

49. These Defendants deny the allegations contained in paragraph 49 of Plaintiff's motion to the extend that they differ or depart from what is reflected upon the docket of the Circuit Court of Lafayette County, Mississippi.

50. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 50 of Plaintiff's motion, and therefore deny same.

51. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 51 of Plaintiff's motion, and therefore deny same.

52. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 52 of Plaintiff's motion, and therefore deny same.

53. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 53 of Plaintiff's motion, and therefore deny same.

54. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 54 of Plaintiff's motion, and therefore deny same.

55. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 55 of Plaintiff's motion, and therefore deny same.

56. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 56 of Plaintiff's motion, and therefore deny same to the extent that they differ or depart from what is reflected upon the docket of the Circuit Court of Lafayette County, Mississippi.

57. These Defendants are without knowledge or information sufficient to form a belief as to the truth or falsity of the allegations contained in paragraph 57 of Plaintiff's motion, and therefore deny same.

58. These Defendants deny all and singular of the allegations and averments contained in paragraph 58 of Plaintiff's motion.

59. These Defendants deny the claim for injunctive relief set forth in paragraph 59 of Plaintiff's motion, and deny the rest and remainder of paragraph 59 of Plaintiff's motion.

60. These Defendants deny the claim for declaratory relief set forth in paragraph 60 of Plaintiff's motion as improperly plead and as wholly without merit; these Defendants deny the rest and remainder of paragraph 60 of Plaintiff's motion.

61. These Defendants deny the allegations contained in paragraph 61 of Plaintiff's motion which seek the Court to appoint, ostensibly at taxpayer expense, a plaintiff's attorney to represent Plaintiff in his rambling claim against the judiciary and governments of Lafayette and Marshall Counties in the State of Mississippi. These Defendant deny all the allegations contained in paragraph 61 of Plaintiff's motion.

62. These Defendants deny each and every allegation and averment contained and set forth in that certain unnumbered paragraph beginning with the word “Wherefore”, and deny that Plaintiff is entitled to any sum or form of relief whatsoever from these Defendants.

63. These Defendants deny each and every allegation and averment contained in Plaintiff’s motion not heretofore admitted or denied.

AND NOW, having fully responded to *Plaintiff’s Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection* [Doc.60], Defendants Lafayette County Chancery Court, David O’Donnell, Sherry Wall and Jeff Busby pray that the Court, upon a hearing hereof, would enter its order dismissing Plaintiff’s aforesaid pleading, nominated herein as a motion, in all of its particulars to the extent that it applies or pertains to these Defendants.

THIS the 1st day of March, 2023.

Respectfully submitted,

Lafayette County Chancery Court; David
O’Donnell, Sherry Wall and Jeff Busby
Defendants

By: /s/ Robert J. Dambrino III
Robert J. Dambrino III (MB#5783)
Attorney for Defendants

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CERTIFICATE OF SERVICE

I do hereby certify that I have this date electronically filed the foregoing with the Clerk of the Court using the ECF system which sent notification of such filing to the following parties and counsel of record:

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I further certify that I have this day served the above and foregoing pleading upon Plaintiff by placing a true and correct copy of the foregoing pleading in the United States Mail, postage prepaid and properly addressed, as follows:

Matthew Oliver Reardon (MDOC #210988)
East Mississippi Correctional Facility
10641 Highway 80 West
Meridian, MS 39307

THIS the 1st day of March, 2023.

/s/Robert J. Dambrino III
Robert J. Dambrino III (MB#5783)